

Madhu Sharma vs Hemant Rai Sharma @ Hemant on 24 February, 2023

Neutral Citation No:

T.A.No. 244 of 2023 (O&M)

1

104

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

Transfer Application No. 244 of 2023
Date of decision: 24.02.2023

Madhu Sharma

.....Petitioner

vs

Hemant Rai Sharma @ Hemant

.....Respondent

CORAM: HON'BLE MS. JUSTICE NIDHI GUPTA

Present:- Ms. Prerna, Advocate for
Mr. Bhunesh Lakhera, Advocate
for the petitioner.

NIDHI GUPTA, J.(Oral)

1. Prayer in this petition filed by petitioner-wife is for transfer of the petition filed by respondent-husband under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 (for short 'the Act') titled "Hemant Rai Sharma vs. Madhu Sharma" pending in the Court of Principal Judge, Family Court, Pataudi, District Gurugram to a Court of competent jurisdiction at Rewari.

2. Learned counsel for the petitioner submits :-

i) That the parties were married on 05.2.2017 according to Hindu rites and rituals.

ii) That a girl child was born out of this wedlock, who is minor and is in the care and custody of the petitioner.

iii) That the petitioner-wife is living separately from the respondent-husband since 02.3.2018 and living with her parents at their mercy at Rewari.

1 of 6 Neutral Citation No:=-

iv) That the petitioner is unemployed, having no source of income and totally dependent upon her parents and the respondent-husband is not paying anything to her towards maintenance.

v) The respondent-husband has filed the petition under Section 13(1)(ia)(ib) of the Hindu Marriage Act, which is pending before the Principal Judge, Family Court, Pataudi, District Gurugram.

vi) The proceedings arising out of petitions :-

(a) under Section 12 of the Protection of Women from Domestic Violence Act, 2005;

(b) under Section 125 Cr.P.C.; and

(c) FIR No.73 dated 06.7.2018, under Sections 498-A and 377 IPC;

filed by the petitioner-wife, are pending in the Courts having competent jurisdiction at Rewari.

vii) That the distance between place of residence of the petitioner-wife i.e. Rewari and the place of proceedings under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 filed by the respondent-husband, pending before the Principal Judge, Family Court, Pataudi, District Gurugram is about 30 kilometers one side.

viii) That there is no proficient male member in the family of petitioner who can accompany her to the Court of proceedings pending at Pataudi, District Gurugram.

3. It is inter alia on these grounds that petitioner prays for transfer of the case, as detailed in para 1 above.

4. I have heard learned counsel for the petitioner.

The legal position in such like cases as the present one, is well established. In this regard, judgment of the Hon'ble Supreme Court rendered in N.C.V. Aishwarya vs A.S. Saravana Karthik 2 of 6 Neutral Citation No:=- Sha," 2022 Live Law (SC) 627, is most relevant wherein the Hon'ble Supreme Court has held as under:-

"9. The cardinal principle for exercise of power under section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or

other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socioeconomic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer.

10. Further, when two or more proceedings are pending in different Courts between the same parties which raise common question of fact and law, and when the decisions in the cases are interdependent, it is desirable that they should be tried together by the same Judge so as to avoid multiplicity in trial of the same issues and conflict of decisions."

5. Further reliance can be placed upon the judgments in "Sumita Singh vs Kumar Sanjay", 2002 SC 396 and "Rajani Kishor Pardeshivs Kishor Babulal Pardeshi", 2005(12) SCC 237, wherein the Hon'ble Supreme Court has observed that "while deciding the transfer application, the Courts are required to give more weightage and consideration to the convenience of the female litigants and transfer of legal proceedings from one Court to another should ordinarily be allowed, taking into consideration their convenience and the Courts should desist from putting female litigants under undue hardships."

6. Even this Court in number of cases has followed the aforesaid principle of law. Accordingly, it is well settled that while considering the transfer of a matrimonial dispute/case, at the instance 3 of 6 Neutral Citation No:= of the wife, the Court is to consider the family condition of the wife, the custody of the minor child, economic condition of the wife, her physical health and earning capacity of the husband and most important the convenience of the wife i.e. she cannot travel alone without assistance of a male member of her family, connectivity of the place to and fro from her place of residence as well as bearing of the litigation charges and travelling expenses.

7. After going through the entire paper-book, considering the fact that issuance of notice to the respondent has the consequences of staying further proceedings before the trial Court, otherwise the petitioner-wife will have to bear the litigation expenses and transportation expenses and in case, notice of motion is issued, even the respondent-husband has to bear the litigation expenses and in view of the judgments i.e. Sumita Singh's case (supra), Rajani Kishor Pardeshi's case (supra) and N.C.V. Aishwarya's case (supra) passed by the Hon'ble Supreme Court, this Court deems it appropriate to allow the present petition, subject to the following conditions:-

a) The petition filed by respondent husband under Section 13(1)(ia)(ib) of Hindu Marriage Act, 1955, titled as 'Hemant Rai Sharma vs. Madhu Sharma', pending in the Court of Principal Judge, Family Court, Pataudi, District Gurugram is transferred to a Court of competent jurisdiction at Rewari.

b) The Id. District Judge, Gurugram is directed to transfer complete record pertaining to the aforesaid case to District Judge, Rewari.

c) The parties are directed to appear before the District & Sessions Judge, Rewari on 31.3.2023.

4 of 6 Neutral Citation No: =

d) The District Judge, Rewari will assign the said petition to the Court of competent jurisdiction.

8. The concerned Court at Rewari will make all endeavour to refer the case before the Mediation and Conciliation Centre for exploring the possibility of some amicable settlement between the parties.

9. The Court concerned, where the litigation pending between the parties, will accommodate them with one date in one calendar month.

10. However, liberty is granted to the respondent to revive this petition, if he intends to contest the same, provided that:-

(a) The respondent will clear all arrears of maintenance amount, if any, in terms of any petition filed by the petitioner either under Section 125 Cr.P.C. or Section 12 of the Domestic Violence Act or Section 24 of the Hindu Marriage Act.

(b) The respondent will file an affidavit giving undertaking to pay Rs.1,000/- per day, to the petitioner for attending the Court proceedings at District Courts, Gurugram on each and every date of hearing.

(c) The respondent will bring a demand draft of Rs.25,000/-, drawn in favour of petitioner, towards the litigation expenses to pursue the case at District Gurugram in case the respondent opts to contest this petition.

11. I am supported by the decisions rendered by a Co-ordinate Bench of this Court in TA No. 1315/2022, Rohini Arora v Nitin Talwar; TA No. 1322 of 2022, Jaswinder Kaur v Gurvinderjeet Singh; and TA No. 1323 of 2022, Usha Rani v Karmajit Singh.

5 of 6 Neutral Citation No: =

12. As already noticed above, since the petition is being disposed of without issuing notice to the respondent, accordingly, in these peculiar circumstances, in order to ensure appearance of the parties before the District Judge, Rewari on 31.3.2023, it is directed that a copy of this order be sent to the respondent through registered post, besides sending a copy of this order to the District Judges concerned through e-mail. Petitioner through her counsel, present in the Court, is directed to ensure her appearance accordingly.

Disposed of.

Pending application(s), if any, stands disposed of.

February 24, 2023
Vijay Asija

(NIDHI GUPTA)
JUDGE

Whether speaking/reasoned
Whether Reportable

YES/NO
YES/NO

Neutral Citation

6 of 6